

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:
Date Purchased

FREDDY RUIZ,

SUMMONS

Plaintiff,

Plaintiff designates NEW
YORK County as the place of
trial.

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, VIRGINIA L. PERALTA (BADGE NO.
26205) AND ANTHONY M. PATERNO (BADGE NO.
4034),

The basis of venue is the County
in which the accident occurred.

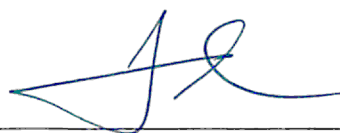
Defendants.

Accident location/Plaintiff's
address: West 181st Street (Plaza
Lafayette) at its intersection
with Haven Avenue, in the
County, City and State of New
York

To the above named Defendant:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a Notice of Appearance on the Plaintiff's attorneys within twenty (20) days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within thirty (30) days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
November 15, 2022



Joseph Taylor, Esq.
RAPHAELSON & LEVINE LAW FIRM, P.C.
Attorneys for Plaintiff
Pennsylvania Building
14 Penn Plaza, Suite 1718
New York, New York 10122
(212) 268-3222

Defendant:

THE CITY OF NEW YORK

100 Church Street

New York, NY 10007

NEW YORK CITY POLICE DEPARTMENT

One Police Plaza

New York, NY 10038

VIRGINIA L. PERALTA (BADGE NO. 26205)

New York Police Department

34th Precinct

4295 Broadway

New York, New York 10033

ANTHONY M. PATERNO (BADGE NO. 4034)

New York Police Department

34th Precinct

4295 Broadway

New York, NY 10033

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

FREDDY RUIZ,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, VIRGINIA L. PERALTA (BADGE NO.
26205) AND ANTHONY M. PATERNO (BADGE NO.
4034),

Defendants.

Index No.:

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VERIFIED COMPLAINT

Plaintiff, **FREDDY RUIZ**, by her attorneys, **RAPHAELSON & LEVINE LAW FIRM, PC**, complaining of the Defendants, respectfully alleges, upon information and belief:

1. Plaintiff, **FREDDY RUIZ**, at all times herein mentioned was and still is a resident of the County of New York, State of NY.

2. That at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, is a duly organized municipal corporation, existing under and by virtue of the laws of the State of New York.

3. That at all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, is a duly organized municipal corporation, existing under and by virtue of the laws of the State of New York.

4. Upon information and belief, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, was and still is, a resident of the County of New York, State of New York.

5. Upon information and belief, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, was and still is, a resident of the County of Queens, State of New York.

6. Upon information and belief, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, was and still is, a resident of the County of Kings, State of New York.

7. Upon information and belief, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, was and still is, a resident of the County of Bronx, State of New York.

8. Upon information and belief, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, was and still is, a resident of the County of New York, State of New York.

9. Upon information and belief, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, was and still is, a resident of the County of Queens, State of New York.

10. Upon information and belief, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, was and still is, a resident of the County of Kings, State of New York.

11. Upon information and belief, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, was and still is, a resident of the County of Bronx, State of New York.

12. That on August 2, 2022, Plaintiff's Notice of Claim and intention to sue which stated the time when and place where Plaintiff's injuries were sustained was duly served upon

Defendants, **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, and same was served within ninety days after the cause of action accrued.

13. That on August 12, 2022, Plaintiff's Notice of Claim and intention to sue which stated the time when and place where Plaintiff's injuries were sustained was duly served upon Defendants, **VIRGINIA L. PERALTA (BADGE NO. 26205)** and **ANTHONY M. PATERNO (BADGE NO. 4034)**, and same was served within ninety days after the cause of action accrued.

14. Thereafter, and on August 23, 2022, a hearing was held pursuant to notice given by Defendant **THE CITY OF NEW YORK** and testimony was taken by said Defendant at such hearing, which was duly transcribed and will be sworn to by Plaintiff as required by law and thereafter filed in the office of the Comptroller of the City of New York as soon as said transcript is received by Plaintiff's attorneys.

15. That at least thirty days have elapsed since the demand or claim upon which this action is predicated was presented to the Comptroller's Office for adjustment or payment and it has neglected and/or refused to make said adjustment or payment. This action is commenced within fifteen months after said action accrued.

16. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, was the owner of a New York City Police Department motor vehicle, specifically Van Number 8660.

17. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, was the registrant of a New York City Police Department motor vehicle, specifically Van Number 8660.

18. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, operated the New York City Police Department motor vehicle, specifically Van Number 8660.

19. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, managed the New York City Police Department motor vehicle, specifically Van Number 8660.

20. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, maintained the New York City Police Department motor vehicle, specifically Van Number 8660.

21. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, controlled the New York City Police Department motor vehicle, specifically Van Number 8660.

22. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, supervised the New York City Police Department motor vehicle, specifically Van Number 8660.

23. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **THE CITY OF NEW YORK**, performed repairs to the New York City Police Department motor vehicle, specifically Van Number 8660.

24. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was the owner of the New York City Police Department motor vehicle, specifically Van Number 8660.

25. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was the registrant of the New York City Police Department motor vehicle, specifically Van Number 8660.

26. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, operated the New York City Police Department motor vehicle, specifically Van Number 8660.

27. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, managed the New York City Police Department motor vehicle, specifically Van Number 8660.

28. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, maintained the New York City Police Department motor vehicle, specifically Van Number 8660.

29. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, controlled the New York City Police Department motor vehicle, specifically Van Number 8660.

30. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, supervised the New York City Police Department motor vehicle, specifically Van Number 8660.

31. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, performed repairs to the New York City Police Department motor vehicle, specifically Van Number 8660.

32. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, was the owner of the New York City Police Department motor vehicle, specifically Van Number 8660.

33. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, was the registrant of a motor vehicle bearing license plate number .

34. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, operated the New York City Police Department motor vehicle, specifically Van Number 8660.

35. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, managed the New York City Police Department motor vehicle, specifically Van Number 8660.

36. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, maintained the New York City Police Department motor vehicle, specifically Van Number 8660.

37. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, controlled the New York City Police Department motor vehicle, specifically Van Number 8660.

38. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, supervised the New York City Police Department motor vehicle, specifically Van Number 8660.

39. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, performed repairs to the New York City Police Department motor vehicle, specifically Van Number 8660.

40. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, was the owner of the New York City Police Department motor vehicle, specifically Van Number 8660.

41. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, was the registrant of the New York City Police Department motor vehicle, specifically Van Number 8660.

42. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, operated the New York City Police Department motor vehicle, specifically Van Number 8660.

43. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, managed the New York City Police Department motor vehicle, specifically Van Number 8660.

44. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, maintained the New York City Police Department motor vehicle, specifically Van Number 8660.

45. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, controlled the New York City Police Department motor vehicle, specifically Van Number 8660.

46. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, supervised the New York City Police Department motor vehicle, specifically Van Number 8660.

47. Upon information and belief, on or about July 11, 2022, and at all times herein mentioned, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, performed repairs to the New York City Police Department motor vehicle, specifically Van Number 8660.

48. At all times herein mentioned, the intersection of West 181st Street (Plaza Lafayette) at its intersection with Haven Avenue (access road to the Henry Hudson Parkway southbound) in the County, City and State of New York is a public roadway and/or thoroughfare.

49. That on July 11, 2022, Plaintiff, **FREDDY RUIZ**, was a passenger in Defendant, **THE CITY OF NEW YORK's** motor vehicle at the above-mentioned location.

50. That on July 11, 2022, Plaintiff, **FREDDY RUIZ**, was a passenger in Defendant, **NEW YORK CITY POLICE DEPARTMENT's** motor vehicle at the above-mentioned location.

51. That on July 11, 2022, Plaintiff, **FREDDY RUIZ**, was a passenger in Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205's)** motor vehicle at the above-mentioned location.

52. That on July 11, 2022, Plaintiff, **FREDDY RUIZ**, was a passenger in Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034's)** motor vehicle at the above-mentioned location.

53. That on July 11, 2022, Defendant, **THE CITY OF NEW YORK**, was operating the New York City Police Department motor vehicle, specifically Van Number 8660 at the above-mentioned location.

54. That on July 11, 2022, Defendant, **NEW YORK CITY POLICE DEPARTMENT**, was operating the New York City Police Department motor vehicle, specifically Van Number 8660 at the above-mentioned location.

55. That on July 11, 2022, Defendant, **VIRGINIA L. PERALTA (BADGE NO. 26205)**, was operating the New York City Police Department motor vehicle, specifically Van Number 8660 at the above-mentioned location.

56. That on July 11, 2022, Defendant, **ANTHONY M. PATERNO (BADGE NO. 4034)**, was operating the New York City Police Department motor vehicle, specifically Van Number 8660 at the above-mentioned location.

57. That as a result of the aforesaid motor vehicle accident, Plaintiff, **FREDDY RUIZ**, was injured.

58. The aforesaid occurrence was caused solely and wholly as a result of the carelessness, recklessness and negligence of the Defendants, and each of them, in the ownership, operation, management and control of their motor vehicle in that said vehicle was being operated at an excessive, unlawful and dangerous rate of speed and/or at a greater rate of speed than care and caution would permit under the circumstances and conditions then and there existing all to the knowledge of each Respondent; in failing to have said vehicle under reasonable and proper control; in negligently, carelessly and recklessly causing and permitting said vehicle to be operated in a manner contrary to and in violation of the statutes and ordinances and police regulations in such cases made and provided for; in negligently, carelessly and recklessly omitting and failing to observe traffic conditions; in negligently, carelessly and recklessly omitting and failing to provide and/or permit timely use of adequate and efficient brakes, steering devices and/or steering mechanisms; in operating their aforementioned vehicles in a negligent, careless and reckless

manner and with wanton disregard for others, more specifically the Plaintiff herein; in acting with a reckless disregard for the safety of others; in failing to pay attention to traffic conditions and traffic; in failing and omitting to take proper and suitable precautions to avoid said incident; in failing to properly secure Plaintiff into the passenger seat of the police vehicle, in failing to use seatbelts readily available in the vehicle to properly secure the Plaintiff; in failing to buckle Plaintiff; in failing to secure Plaintiff; that the passenger seat was inherently defective, and unsafe, inadequate and unfit for the purposes for which it was being used; that the Respondent by their agents, servants and/or employees were careless and negligent in failing to properly inspect and test the passenger seat of the police vehicle; in using unsafe and defective parts; in failing to provide proper warnings of those dangers and hazards, or those dangers and hazards that reasonably should have been known by Respondent in the exercise of reasonable care; in failing to comply with applicable laws in such cases made and provided for; in that Defendants had notice or should have had notice of the various defects in the use of the passenger seat in the police vehicle; in failing to make proper repairs to said seat in the police vehicle; in failing to properly warn persons, including the Plaintiff, who were sitting in the passenger seat of the police vehicle of its malfunctions and defective mechanisms affecting the function and operation of the said police vehicle; in that there was a special relationship between the officers named herein and the Plaintiff; in that the officers violated a statutory duty; in that the officers voluntarily assumed a duty which generated justifiable reliance upon them by the Plaintiff; in assuming positive direction and control in the face of a known, blatant and dangerous safety violation; in assuming, through promise and action, an affirmative duty to act on behalf of Plaintiff; in failing to act knowing that such inaction could lead to harm; in having direct contact with the Plaintiff; in that Plaintiff justifiably relied on Defendants' affirmative undertaking; in acting outside the scope of what could

reasonably constitute discretionary authority; in violating provisions of the new York vehicle and traffic laws; one or more of the above acts and/or omissions of negligence were a substantial factor in causing the severe personal injuries suffered by the Plaintiff **FREDDY RUIZ**.

59. That by reason of the foregoing, Plaintiff, **FREDDY RUIZ**, sustained severe and permanent personal injuries and was otherwise damaged.

60. Said injuries are permanent in nature and duration, and were caused, precipitated, aggravated and/or exacerbated by the occurrence herein. That to the extent the above injuries, conditions and/or diagnoses are shown to pre-date the accident, then such injuries, conditions and/or diagnoses were latent and inactive, and as a result of this accident, were activated, accelerated and exacerbated therein.

61. That Plaintiff, **FREDDY RUIZ**, sustained serious injuries as defined by §5102(d) of the Insurance Law of the State of New York.

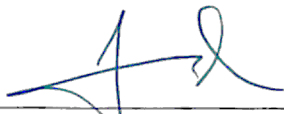
62. That Plaintiff, **FREDDY RUIZ**, sustained serious injuries and economic loss greater than basic economic loss as defined by §5104 of the Insurance Law of the State of New York.

63. That this action falls within one or more of the exceptions set forth in CPLR§ 1602 and specifically paragraph six (6) thereof.

64. That by reason of the foregoing, Plaintiff, **FREDDY RUIZ**, has been damaged in an amount that exceeds the jurisdictional limits of all Courts that would otherwise have jurisdiction.

WHEREFORE, Plaintiff, **FREDDY RUIZ** demands judgment against the Defendants in the amount that exceeds the jurisdictional limits of all Courts that would otherwise have jurisdiction.

Dated: New York, New York
November 15, 2022

A handwritten signature in blue ink, appearing to be 'J. Taylor', written over a horizontal line.

By: Joseph Taylor, Esq.
RAPHAELSON & LEVINE LAW FIRM, P.C.
Attorneys for Plaintiff
Pennsylvania Building
14 Penn Plaza, Suite 1718
New York, New York 10122
(212) 268-3222

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

FREDDY RUIZ,

Plaintiff,

-against-

INDEX NO.
CAL. NO.

INDIVIDUAL VERIFICATION

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, VIRGINIA L. PERALTA (BADGE NO.
26205) AND ANTHONY M. PATERNO (BADGE NO.
4034),

Defendants.

STATE OF NEW YORK)

) ss.:

COUNTY OF

Freddy Ruiz

_____, being duly sworn, deposes and says:

That I am one of the plaintiffs in the within action.

I have read the foregoing and know the contents thereof and the same is true to the best
of my knowledge, except as to those matters herein stated to be alleged upon information and
belief and that as to those matters, I believe them to be true.

x _____ 

Sworn to before me this

15th day of November 2022


NOTARY PUBLIC

ISABEL F. SANTANA
Notary Public, State of New York
Reg. No. 01SA6256568
Qualified in New York County
Commission Expires Feb 27, 2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

FREDDY RUIZ,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT, VIRGINIA L.
PERALTA (BADGE NO. 26205) AND ANTHONY M. PATERNO (BADGE NO. 4034)

Defendants.

SUMMONS and VERIFIED COMPLAINT

RAPHAELSON & LEVINE LAW FIRM, P.C.

Attorneys for Plaintiff
Pennsylvania Building
14 Penn Plaza, Suite 1718
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(212) 268-3222